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Case Diary

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A Case Diary or Special Diary, is a systematic record compiled by the Investigating Officer chronologically on day-to-day basis as envisaged in Section 172 (1) CrPC. commencing from the time the investigation started and continuing until the case is finally disposed off from the Police file.

Diaries of two Kinds.

General Diary. Section 44 Police Act 1861 called as Station Diary or Station House Register.

Special Diary or Case Diary. Section 172 CrPC. and PSO 567-572 deal with Case Diaries and its implications in investigation and Court proceedings.

Objects of Case Diary.

- Law empowers officers in-charge of PS to investigate all cognizable crimes reported at the PS or which come to their notice otherwise, whether under the IPC or under the Special and Local Laws, as also Non-cognizable cases endorsed to them by Magistrates.
- When they investigate cases, they have to prepare a record of their investigation to know whether the information they have received is true or false or misleading.
- Object is to provide means for superior Police Officers and trial Courts to know and check the method of investigation employed by the Police and also to provide information of what has happened.
- This is different from the General Diary which is prescribed u/s 44 of the Police Act 1861 in which only the substance of the information received will be entered as also the action taken thereon.
- It helps the succeeding IO to continue the investigation without difficulty.

Legal provisions relating to Case Diary.

Section 172 and 167 (1) CrPC.

Police Standing Orders 86, 141, 180, to 182, 211 to 213, 224, 567 to 572, 675, 695, 699, 709, 760 and 852 prescribes guidelines for the preparation, maintenance and the usage of Case Diary.

Importance of Case Diary.

- Case Diary is a chronological record of the progress of investigation.
- Writing Case Diary is statutory and legal obligation.
- It is a record of reference for the Investigation Officer.
- It helps to decide further course of action.
- It helps subsequent IO to understand the case.
- It provides as a basis for Superior Officers to supervise and guide the IO.
- It is as important as FIR.
- If written on a day-to-day basis without delay, the sanctity and credibility is maintained of the evidence collected in investigation.
- The Court can look into the CD to take its aid in enquiry or trial.
- The different columns in Case Diary are:-
  - FIR Number and Date of FIR.
  - Section of Law.
  - Serial Number of CD.
  - Date of CD.
  - Date and number of previous CD.
  - Name of the complainant/ informant.
  - Name of the deceased/ victim.
  - Property lost and recovered.

- Time of commencement of investigation and time of conclusion.
- Places visited.
- Names of accused.
- Names of persons examined during the day.
- Total number of persons examined.
- Details of investigation conducted during the day.

Sec.172 CrPC. Diary of proceeding in investigation.

Provisions of law relating to case diary:

Sec.172(1) CrPC. Diary of proceeding in investigation: every police officer making an investigation under this chapter shall day by day enter his proceedings of the investigation in a diary, setting forth the time at which the information reached him, the time at which he began and closed his investigation, the place or places visited by him, and a statement of the circumstances ascertained through his investigation.

Sec.172 (2) CrPC. Any Criminal court may ask for the police diaries of a case under inquiry or trial in such court, and may make yuse of such diaries, not as evidence in the case, but to aid it in such inquiry or trail.

Sec.172 (3) CrPC. Neither the accused nor his agents shall be entitled to call for such diaries, nor shall he or they be entitled to see them merely because they are referred to by the court; but, if they are used by the police officer who made them to refresh his memory, or if the court uses them for the purpose of contradicting such police officer, the provisions of section 161 or section 145, as the case may be, of the Indian evidence act, 1872 (1 of 1872), shall apply.

Statement of witnesses: (i) Sec.160 CrPC. empowers the investigating officer to secure attendance of witnesses to the crime investigated for examination and Sec.161 CrPC. empowers him to examine such witnesses orally in the course of investigation and if necessary to record their statements Sec.161 further enjoins that a witness is bound to answer truly when questioned by the police excepting the questions the answers to which would have a tendency to expose him to a criminal charge or to a penalty or forfeiture. The police officer recording the statements must make a separate and true record of each witness. Taking signature of witness is expressly prohibited by sec.162 CrPC. A witness making a false statement is liable to prosecution under sec.193 IPC.

Points to be followed while taking statement of witnesses:-

- Avoid omissions of important details – they are taken as contradictions (Explanation to Sec. 162 CrPC.)
- No précis or condensed version of the examination of the witnesses should be recorded. Must record what each witness says (AIR 1950 Cal. 565)
- Each statement must be capable of being read by itself without necessarily looking into the statement of others (AIR 1954 Mys.81)
- The failure to make a separate record of the statement of each witness would be a violation of the mandatory provisions of sec.161 (3) CrPC.
- The practice of writing against names of certain witnesses that they corroborate the statement of earlier witnesses is illegal and strongly deprecated by courts (AIR 1945 Pat.109).
- The Diary u/s 172 shall contain the statements of witnesses recorded u/s 161 CrPC. The part containing such statements is called Part-II whereas Investigation part case diary is called Part-I. This classification has come into existence for the sake of administrative convenience as part-I is a privileged document and Part II sec.161 (3) statements are public documents as per PSO 567.
- The Part II statements recorded shall whenever possible, be in the first person and in the language of the witness themselves. The part II alone is available to the accused and it should be handed over to the Magistrate clerk making out copies to be furnished to the accused.

- It is required to record the individual statements of witnesses examined u/s 161 CrPC in Part-I case Diary. In case they are so recorded, both in part I and part II of the case diary there is the possibility of the two statements conflicting with each other. Such a course will be detrimental to the prosecution. To avoid this, copies of 161(3) statements shall be inserted in the case diary part I as per requirement of sec.171 (1) (1-A) 2005 Amendment.
- Part I of the case diary shall be sent to the court along with the remand report. Part II need not be sent. As part-I is a confidential record, it is necessary that it should be kept in the custody of the Magistrate instead of it. In practice, it is kept only in the case record and therefore the possibility of the accused /advocate gaining access to it cannot be excluded.
- No longer it is a confidential document and should be sent to Court with the Charge-sheet and case diaries.
- Diaries not fulfilling the conditions of section 172 CrPC lose their privilege and in such cases spot notes are of immense value; preservation of notes made at the spot is, therefore advised.
- Sec.167 (1) CrPC also provides that a copy of the entries in the CD shall have to be sent to the Magistrate while forwarding the accused for remand.
- The Magistrate cannot remand the accused without satisfying himself on a perusal of the said diary that a remand is necessary.

Contents and legal requirement of the Case Diary.

- Sec.172 CrPC lays down that a record of the investigation must be made in a form prescribed for the purpose by the State Government called the case diary.
- The Diary should be written legibly and carefully and made, as concise as possible.
- The law requires that the diary to be written from day to day commenced and closed in the same date for a particular case until the case ends in conviction or acquittal or treated otherwise as false or non cognizable or MF / ML / UN etc.
- Correct record of time must be maintained; the time at which the information reached IO, the time at which the IO began and closed his investigation, the places visited by him, the hour of each entry and name of the place should be noted in the appropriate columns of the CD.
- Name, age, father's name, addresses of the witnesses examined in the particular date should be written.
- The CD should contain the time about the first information, the offence committed, the brief facts about the FIR, the time IO took up the investigation, the various steps taken by him, and the time he closed his investigation for that day.
- Events and actions taken should be entered in a chronological order.
- Equipment taken to the crime scene, records picked up and stationeries provided for, as also the manpower required for assistance shall be entered.
- Any other preliminary steps taken, such as information sent to the superiors about the occurrence (Express Report, telegraphic information, radio-message, telephone call or special messenger).
- The services of sniffer dog squad, bomb detection and disposal squad etc. utilized.
- A full and faithful description of the scene of offence and its surroundings including the line of approach and retreat of the culprit or culprits.
- Any inquest done in death investigation, the date and time of the completion of the inquest procedures, how the body disposed after inquest/postmortem.
- A CD should embody the result of the PM examination, if conducted.
- In the inquest, statements of any relatives of the deceased person or other persons who may speak of facts touching the cause of death, should be recorded in the CD in detail and wherever possible, in the first person and in the language of the persons examined.

- Statements of important witnesses who are not examined at the inquest owing to their not being available should be recorded in a Case Diary.
- A true record of the observation at the scene of occurrence must be entered. It is also necessary to describe objects seen with reference to some other objects having fixed position at the place.
- Scene must be described fully the map or plan of the place of occurrence must be drawn on a separate sheet not on the leaves of the Diary.
- Steps taken in furtherance of the investigation, such as the issue of Enquiry Roll Forms, Hue and Cry notices should be furnished.
- The stolen property list, verifying the complicity of criminals addicted to similar Modus Operandi, and other probable criminals.
- Reference to the District Crime Records Bureau, Modus Operandi Bureau and the like, all should be indicated.
- Particular of witnesses examined suspects / accused questioned and informants contacted during the course of investigation.
- Any searches made, whether persons or houses, with the grounds for the search and the results thereof and if any property is seized / recovered in these searches or otherwise should be clearly described.
- Whether they were shown to the owners and whether they were identified by them or not should be clearly specified.
- If any arrests were made, by whom, at what place and time, and how the arrested person or persons were disposed. It should be a complete record of whatever was done in the course of investigation.
- The various efforts taken by the IO to apprehend the accused, and if arrested, whether the arrested person was enlarged on bail or searched and locked up in the PS, and sent up to the Magistrate for remand, should all find a place.
- Complete 161 (3) CrPC statements should be recorded separately in full but gist may be mentioned in the Diary in the third person.
- The CD should also contain all other facts ascertained during the course of investigation and pertaining to the case.
- Any further line of investigation considered necessary or ordered by superiors must also find a place at the end of the day's CD. After the first investigation, the results of further investigation should also be incorporated similarly in the CD.
- It is desirable to mention at the end of the day's Diary a note about further actions yet to be taken in the case.
- Dispatch and means of dispatch should be mentioned at the end of diary and copies sent to superior officers as required by respective police regulations in each State.
- Marginal note to the paragraph be ginven and each page numbered.
- In order to show the progress of trials in courts, CDs should also be written reporting all hearings and adjournments of cases.

How to maintain Case Diary:

1) Recording should be prompt without any changes.
2) The sheets in case diaries should be numbered serially.
3) They should be in chronological order.
4) Each case should have a separate file
5) Narrative portion of investigation must be in part-1.
6) Statements must be in part-II
7) Separate sheet should be maintained for each witness.
8) Statements are to be enclosed to part-I
9) Case Diary file is to be preserved till disposal of the case.

General Diary.

This General Diary is also called Station Diary or Station House Report.

Sec.155 (1) CrPC when information is given to an officer in-charge of a PS of the commission within the limits of such station of a non-cognizable offence, he shall enter or cause to be entered the substance of the information in a book

to be kept by such officer in such form as the State Government may prescribe in this behalf, and refer the informant to the Magistrate.

Sec.44 of Police Act 1861.

It shall be the duty of every officer in-charge of a PS to keep a General Diary in such form as shall, from time to time, be prescribed by the State Government and to record therein all complaints and charges preferred, the names of all persons arrested, the names of the complainants, the offence charged against them, the weapons or property that shall have been taken from their possession or otherwise and the names of the witnesses who shall have been examined.

The Magistrate of the District shall be at liberty to call for and inspect such Diary.

In which cases case diaries should be written.

- All cognizable cases investigated by the police under Chapter XII of the CrPC.
- In all non-cognizable cases investigated by the police under the order of Magistrate.
- In all cases of investigation u/s 174 CrPC.
- In all cases under Chapter VII of the CrPC. Section 107 to 110, 144, 145, and 151.
- Case Diary need not be written when Magistrate directs police to conduct investigation u/s 202 CrPC.
- Instances of altering, changing or delaying diaries by police officer and their discovery by trial or appellate courts with their consequent adverse effects on cases have also come to notice. These types of lapses should not happen.

Confession.:

Confession made to the police should be recorded in detail in part I of the CD, in first person and in the accused's own words particularly when the confession leads to discovery of material things. The actual recovery should be shown step by step and the article recovered should be fully described.

PSO 567 to 572 about writing of case diaries and procedure.

PSO 567 case diaries.

- The record of an investigation will be made in the case diary which is the diary prescribed in Section 172 CrPC. It will bear the number of the FIR.
- An Investigation Officer who is away from his station on investigation duty should send his case diary to the station daily.

PSO 570 Forwarding case diaries and remarks upon them.

- CDs will be duplicate by the carbon process, one copy being filed in the station and the other sent to the Circle Inspector, who will forward it to the Superintendent or Sub-Divisional Officer, after making necessary remarks; if any.
- The remarks made in the CDs will be communicated to the Inspector or the Station House Officer as the case may be, by Crime Memoranda instead of returning the remarked case diaries in original.
- Note (1) In respect of prohibitions cases, the CDs will be filled by the circle Inspectors.
- (2) CDs of cases u/s 64 and 65 of the TN City Police Act need not be forwarded to the Sub-Divisional Officers. The Inspectors themselves after scrutiny may file them.

PSO 572 Case Diaries.

English translation of the CD files to be sent to Ministry of Home Affairs Government of India, as soon as a sentence of death is passed or confirmed by the High Court.

When Court may call case diary.

- The courts are authorized to look into the CD's u/s 167 when the remand of the accused is prayed for by the police and during trial u/s 172 and PSO 571 (1).

- At the time of granting bail to the accused on the plea of accused.
- The court may call for the CD when it is decided to detain the accused for more than 24 hours u/s 167.
- The court can look into the CD to find out whether there is sufficient evidence to connect the accused to the crime.
- When Charge Sheet u/s 173 (2) is filed, the Court may call for the CDs at the time of framing charges if the Court has any doubt.
- During trial the Court can look into the CD not as evidence but as on aid to the inquiry or trial u/s 172 CrPC.
- At the time of issuing warrant against the absconding accused on the request of police officer even during investigation.
- At the time of issuing warrant for search of a place on the request of police officer even during investigation.
- At the time of issuing proclamation u/s 82 CrPC against the accused on the request of police officer during trial and also even during investigation